

- i. the personal data shall preferably only be processed within the territory of the European Union and the European Economic Area or in the case of a need for processing within a third country, the Centre's permission shall first be obtained prior to any processing and the requirements laid down in Chapter V of Regulation (EU) 2018/1725³ shall be complied with in full, including compliance with appropriate safeguards as further described in Annex VII-*additional data protection clauses*;
- ii. the data shall preferably only be stored in data centres located with the territory of the European Union and the European Economic Area or in the case of a need for their location in a third country, the Centre's permission shall first be obtained prior to any processing, including storage, in the third country and the requirements laid down in Chapter V of Regulation (EU) 2018/1725 shall be complied with in full;
- iii. access to data may be given on a need to know basis only to authorised persons established in a country which has been recognised by the European Commission as providing adequate protection to personal data or where the controller and processor have provided appropriate safeguards and on condition that enforceable data subjects rights and effective legal remedies for data subjects are available. The requirements laid down in Chapter V of Regulation (EU) 2018/1725 shall be complied with in full;
- iv. the contractor may not change the location of data processing without the prior written authorisation of the contracting authority;
- v. any transfer of personal data under the FWC to third countries or international organisations shall fully comply with the requirements laid down in Chapter V of Regulation (EU) 2018/1725.

I.10. EXPLOITATION OF THE RESULTS OF THE FWC

I.10.1 Modes of exploitation

In accordance with Article II.13.1 whereby the Centre acquires ownership of the results as defined in the *tender specifications* (Annex I), these results may be used for any purpose, including but not limited to alteration or further transferring of the rights acquired and reproduction in an unlimited amount of copies.

The modes of exploitation may be defined in more details in the specific contract or order form.

I.10.2 Licence or transfer of pre-existing rights

All *pre-existing rights* incorporated in the *results*, if any, are licensed to the Centre as set out in Article II.13.2. In particular, the licence shall allow to ECDC to republish and redistribute the part of the result covered by pre-existing rights without any limit and without the need to obtain any further permission.

³ Regulation (EU) 2018/1725 of 23 October 2018 on the protection of natural persons with regard to the processing of personal data by the Union institutions, bodies, offices and agencies and on the free movement of such data, and repealing Regulation (EC) No 45/2001 and Decision No 1247/2002/EC, OJ L 295/39, 21.11.2018, <https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:32018R1725&from=EN>